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North Light Specialty Insurance

Company v. Peralta,

Case No. 25PSCP00472

ORDER ON EX PARTE APPLICATION TO
CONSOLIDATE TWO SEPARATE PROCEEDINGS, OR IN THE ALTERNATIVE, ADVANCE THE
HEARING DATE OF ITS MOTION TO CONSOLIDATE

Pending

before the Court is Petitioner North Light Specialty Insurance Company's Ex Parte Application to Consolidate Two Separate Proceedings, or in the Alternative, Advance the Hearing Date of Its Motion to Consolidate. For the reasons stated herein, the Court denies the application, without prejudice, without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.) Moreover, a party "cannot create a justification for emergency relief by sitting on her rights until she creates an emergency situation." (Davenport v. Blue Cross of California,

(1997), 52 Cal. App. 4th 435, 454-55.)

Here, Petitioner seeks emergency, ex parte relief on the basis that the arbitration in the underlying matter is scheduled for August 5, 2026, which falls before the currently scheduled hearing date for its motion to consolidate. However, the accident at issue occurred on January 20, 2022, and it is not clear to the Court when the arbitration was scheduled or when the facts of the potentially duplicative arbitration were brought to Petitioner's attention. Under the circumstances, the Court determines that Petitioner has not made a sufficient affirmative showing of irreparable harm to just emergency ex parte relief.

The Court thus denies the application, without prejudice.

Petitioner is directed to provide notice.